

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
MIGUEL MENDEZ,

Plaintiff,

-against-

SUMMONS

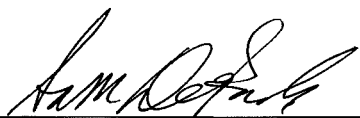
CITY OF NEW YORK, Individually and in their official
capacities as HRA Police, Peace Officers, or employees,
WENDELL WRIGHT, ALEXIS RODRIGUEZ, and JOHN
or JANE DOE 1-10,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
March 29, 2019



SIM & DEPAOLA, LLP
BY: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

Sgt. Wendell D. Wright
Shield # 531
Human Resources Administration
Office of Legal Affairs/Subpoena Unit
4 World Trade Center
150 Greenwich Street, 38th Floor
New York, NY 10007

P.O. Alexis Rodriguez
Shield #1875
Human Resources Administration
Office of Legal Affairs/Subpoena Unit
4 World Trade Center
150 Greenwich Street, 38th Floor
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MIGUEL MENDEZ,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINTCITY OF NEW YORK, Individually and in their official
capacities as HRA Police, Peace Officers, or employees,
WENDELL WRIGHT, ALEXIS RODRIGUEZ, and JOHN
or JANE DOE 1-10,Defendants.
-----X

Plaintiff, MIGUEL MENDEZ, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a December 29, 2017 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Mendez at approximately 10:00 A.M. at 888 Garrison Avenue County of the Bronx, State of New York. Mr. Mendez was subsequently charged with Criminal Possession of a Weapon in the 4th Degree, Resisting Arrest, Obstructing Governmental Administration and Disorderly Conduct. As a result, Mr. Mendez was deprived of his liberty, denied due process of law, subjected to racist and discriminatory conduct and caused to sustain substantial physical and emotional injuries. Mr. Mendez was wrongfully incarcerated for approximately thirty-nine (39) hours, until he was released, on or about, December 31, 2017. Mr. Mendez returned to Court several times before he accepted an Adjournment in Contemplation of Dismissal (ACD) on January 9, 2019.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff Miguel Mendez ("Mr. Mendez") resides at 720 Westchester Ave. Apt. 14-A, Bronx, County, State of New York.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the Human Resources Administration (or "HRA") was responsible for the policy, practice, supervision, implementation, and conduct of all HRA matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all HRA personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the HRS, and for ensuring that the HRA personnel obey the laws of the United States and the State of New York.
7. Defendant Wendell Wright ("Wright") was, at all times here relevant, a sergeant, special police officer and/or peace officer employed by the HRA and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Wright was, at all times relevant herein, a Sergeant, Special Police or Peace Officer under Shield No. 531, assigned to HRA, located at 888 Garrison Avenue, Bronx, New York 10474. Defendant Wright is being sued in his individual and official capacities.

8. Defendant Alexis Rodriguez (“Rodriguez”) was, at all times here relevant, a special police officer and/or peace officer employed by the HRA and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Rodriguez was, at the time relevant herein, a Special Police Officer and/or peace officer, under Shield No. 1875, assigned to HRA, located at 888 Garrison Avenue, Bronx, New York 10474. Defendant Rodriguez is being sued in his individual and official capacities.
9. At all times relevant Defendants John and Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the City of New York, HRA and/or New York City Police Department. At this time, Plaintiff does not know the true names, shield numbers and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
10. John Doe 1 is the HRA caseworker assigned to Plaintiff. Plaintiff is unaware of John Doe 1’s first name, but knows him as “Mr. Maron” or “Mr. Marin.” John Doe 1 or “Mr. Maron” is believed to be employed by HRA at their office located at 888 Garrison Ave., Bronx, NY.
11. Jane Doe 2 is a female HRA employee, who interacted with Plaintiff immediately prior to his arrest, and who informed Plaintiff that his benefits had been reactivated 2 months prior. Jane Doe’s true name is currently unknown, but she is believed to be assigned to the HRA office located at 888 Garrison Ave., Bronx, NY.
12. At all times relevant herein, Defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the HRA. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.

13. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
14. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
15. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
16. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
17. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

18. On December 29, 2017, at approximately 9:30 a.m., Mr. Mendez went to the NYC Human Resources Administration office located at 888 Garrison Ave. Bronx, NY for a scheduled appointment with his caseworker.
19. Mr. Mendez believed he was there to renew his benefits application. Upon meeting his caseworker, John Doe 1 or "Mr. Maron," and woman from the financial office, "Jane Doe 2," he was instructed that his benefits had been reactivated two months prior.
20. Mr. Mendez asked his caseworker (John Doe 1) why he was not informed two months ago that his benefits had reactivated.
21. Mr. Mendez was then confronted by the caseworker (John Doe 1), who demanded that he leave the building.
22. Mr. Mendez complied by calmly walking to the elevator to exit the building.

23. John Doe 1 and Jane Doe 2 called HRA officers to escort Mr. Mendez out of the building for no valid reason, as Mr. Mendes had done nothing wrong to warrant such reaction.
24. John Doe 1 and Jane Doe 2 either falsely reported to Defendants Wright and Rodriguez that Mr. Mendez was shouting obscenities and that he kicked a door, Defendants Wright and Rodriguez completely fabricated their receipt of a complaint accusing Mr. Mendez of shouting obscenities, or Defendants Wright and Rodriguez received said complaint, but confused Mr. Mendez with the true subject of the complaint.
25. Mr. Mendez never shouted obscenities or kicked a door.
26. Defendants Wright and Rodriguez were fully aware that Mr. Mendez did not shout obscenities or kick a door.
27. As Mr. Mendez waited peacefully for the elevator, he was approached by defendants Wright and Rodriguez.
28. Mr. Mendez inquired as to why Defendants Wright and Rodriguez were confronting him.
29. Defendant Wright took out his baton and pressed the baton against Mr. Mendez's neck.
30. Mr. Mendez was forced to grab the baton to keep from choking.
31. While defendant Wright was pushing Mr. Mendez against the wall with his baton, defendant Rodriguez struck Mr. Mendez on his right leg causing pain and bruising.
32. Mr. Mendez was then rear handcuffed, searched and arrested by Defendants Wright and Rodriguez.
33. Defendants Wrights and Rodriguez then transported Mr. Mendez to a local NYPD precinct, where he was processed by defendants and placed in jail cells.

34. While in custody, Mr. Mendez was taken to St. Barnabas Hospital for medical treatment.
35. Mr. Mendez was treated for injuries he sustained from being hit, punched, choked, kicked and struck with batons by Defendants Wright and Rodriguez.
36. Mr. Mendez was eventually taken to Central Booking, where he was arraigned and charged with Criminal Possession of a Weapon and other related charges.
37. Mr. Mendez remained in custody for approximately thirty-nine (39) hours before he was released.
38. Mr. Mendez returned to court several times before he accepted an Adjournment in Contemplation of Dismissal on January 9, 2019.
39. On or about December 29, 2017, defendants, including defendant Wright, and defendant Rodriguez, unlawfully arrested, handcuffed, seized and searched plaintiff in an excessive manner about his person, causing him substantial and severe physical pain and emotional distress.
40. On or about March 29, 2017, defendants, including defendant Wright, and defendant Rodriguez, transferred plaintiff to a police precinct where he was illegally questioned and placed in a cell.
41. On or about March 29, 2017 at 888 Garrison Avenue, Bronx, New York, defendants, including defendant Wright and defendant Rodriguez, unlawfully, and intentionally, using illegal methods, obtained a statement from plaintiff after he had requested the assistance of counsel.
42. Plaintiff never committed any crimes or violations of the law, including Criminal Possession of a Weapon in the 4th Degree, Resisting Arrest, Obstructing Governmental Administration and Disorderly Conduct.

43. Defendants, including Wright and Rodriguez were fully aware, at all times, that they lacked probable cause to arrest Mr. Mendez.
44. Defendants, including Wright and Rodriguez lacked probable cause because Mr. Mendez was standing peacefully waiting for the elevator to exit the building and had committed no crimes or violations of the law.
45. Defendant Rodriguez was Mr. Mendez's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Mendez of Criminal Possession of a Weapon and other related offenses.
46. Defendant Wright signed a supporting affidavit, attesting to the statements made in Plaintiff's criminal court complaint.
47. Defendant Wright and Defendant Rodriguez committed perjury by knowingly attesting to the truthfulness of the statements within the criminal court complaint, because Defendants Wright and Rodriguez knew said statements to be false.
48. Defendant, including defendants Wright and Rodriguez procured Mr. Mendez's Criminal Court Information through fraud, perjury, the suppression of evidence and other conduct undertaken in bad faith, including, but not limited to Defendants' attesting to the veracity of statements Defendants knew to be false.
49. Defendants, including defendants Wright and Rodriguez, committed gross deviations from proper police procedure throughout the course of their interactions with Mr. Mendez, namely the failure to properly memorialize witness statements, the failure to properly document their investigation, the withholding and suppression of exculpatory evidence, and the forwarding of knowingly false information to prosecutors in an effort to have Mr. Mendez prosecuted and convicted for crimes Defendants Wright and Rodriguez knew Mr. Mendez to be innocent of.

50. Defendants, including defendants Wright and Rodriguez, failed to disclose, misrepresented and provided false material details, regarding the presence of probable cause.
51. Defendants, including defendants Wright and Rodriguez, were fully aware, at all times, that Mr. Mendez did not commit the crimes alleged in the criminal court complaint.
52. At no point did the Defendants, including defendants Wright, Rodriguez, John Doe 1 and Jane Doe 2, ever observe Mr. Mendez commit any crime or offense.
53. At no point were the Defendants, including Wright and Rodriguez, ever told by any witnesses that Mr. Mendez committed any crime or violation of the law.
54. The Defendants, including defendant Wright and Rodriguez, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Mendez.
55. Mr. Mendez did not violate any law or local ordinance.
56. Defendants, including defendants Wright and Rodriguez, were fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Mendez, because Defendants Wright and Rodriguez were fully aware that he was innocent of the crimes alleged.
57. Upon information and belief, the HRA, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the HRA that resulted in Plaintiff's arrest without probable cause.
58. Upon information and belief, the HRA, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
59. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within

the HRA and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

60. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the HRA and City of New York are within the exclusive knowledge of defendants.

61. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as HRA police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Mendez.

62. The HRA and its employees have a well-documented history of the violating the Constitutional rights of individuals they are supposed to serve and assist.

63. At all times relevant hereto, defendants, including Wright and Rodriguez, acted maliciously and with intent to injure Plaintiff.

64. At all times relevant hereto, defendants, including Wright and Rodriguez, were involved in the decision to arrest Plaintiff without probable cause, or failed to intervene when they observed others arresting Plaintiff without probable cause.

65. At all times relevant hereto, defendants, including defendants Wright and Rodriguez, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

66. Defendants Wright and Rodriguez arrested and caused a criminal prosecution to be initiated against Mr. Mendez, because of their racist and discriminatory proclivities towards individuals such as Plaintiff, who is a Hispanic male with severe disabilities.
67. Defendants Wright and Rodriguez arrested and caused a criminal prosecution to be initiated against Mr. Mendez to prevent Mr. Mendez from receiving the benefits he is lawfully entitled to.
68. As a direct and proximate result of the acts of defendants, including the City of New York, Wright and Rodriguez, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth.
70. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
71. Plaintiff was conscious of his confinement.
72. Plaintiff did not consent to his confinement.
73. Plaintiff's arrest and false imprisonment was not otherwise privileged.
74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

79. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

80. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth.

84. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

85. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

91. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

92. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

93. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

94. The above paragraphs are here incorporated by reference as though fully set forth.

95. Defendants initiated the prosecution against Plaintiff.

96. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

97. Defendants acted with malice.

98. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

101. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth.

103. Defendants initiated the prosecution against Plaintiff.

104. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

105. Defendants acted with malice.

106. The prosecution was terminated in Plaintiff's favor when he was acquitted of all charges.

107. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

109. By reason of the above, the amount of damages sought on this cause of action

exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
112. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
113. Defendants intended to inflict substantial harm upon Plaintiff.
114. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

120. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
121. Defendants intended to inflict substantial harm upon Plaintiff.
122. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
123. Defendants' actions deprived Plaintiff of his right to be free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
125. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

126. The above paragraphs are here incorporated by reference as though fully set forth.
127. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
128. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

130. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

131. The above paragraphs are here incorporated by reference as though fully set forth.

132. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

133. Accordingly, the Defendants who failed to intervene violated Plaintiff's rights under the Fourth and Fourteenth Amendments.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

137. The above paragraphs are here incorporated by reference as though fully set forth.

138. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

139. Defendant City breached that duty of care.

140. Defendant City placed defendants in a position where they could inflict foreseeable harm.
141. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
142. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
144. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION
Municipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

145. The above paragraphs are here incorporated by reference as though fully set forth.
146. Defendant City, through its HRA agency, maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
147. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
148. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate

indifference towards the rights of those who come into contact with Defendant City's employees.

149. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

150. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

152. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
March 29, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola
Attorneys for Plaintiff
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 29, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MIGUEL MENDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, Individually and in their official capacities as HRA Police, Peace Officers,
or employees, WENDELL WRIGHT, ALEXIS RODRIGUEZ, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for